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Supreme Court, U.S.
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In The
SUPREME COURT OF THE UNITED STATES
October Term, 1998

JONATHAN W. MARSHALL, et al.,

Petitioners,

v.

RONALD SUSTER, et al.,

Respondents.

ON PETITION FOR WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

I. WHETHER THE SIXTH CIRCUIT ERRED BY REVIEWING THE LAW AS IT EXISTED AT THE TIME THE LAWSUIT WAS FILED, RATHER THAN THE AMENDED VERSION EFFECTIVE AT THE TIME OF THE APPELLATE COURT'S REVIEW.

II. WHETHER, CONSISTENT WITH THIS COURT'S RULING IN *BUCKLEY V. VALEO*, 424 U.S. 1 (1976), REASONABLE, POPULATION-BASED LIMITATIONS ON CAMPAIGN SPENDING IN JUDICIAL ELECTIONS ARE NARROWLY TAILORED TO SERVE THE COMPELLING STATE INTERESTS OF THE PRESERVATION OF IMPARTIALITY AND THE APPEARANCE OF IMPARTIALITY OF THE JUDICIARY, OR, IN THE ALTERNATIVE, WHETHER THE STANDARD ARTICULATED IN *BUCKLEY* IS INAPPROPRIATELY APPLIED TO JUDICIAL CAMPAIGNS.

LIST OF PARTIES

APPELLANTS (PETITIONERS):

Jonathan Marshall	Secretary of the Board of Commissioners on Grievances and Discipline of the Ohio Supreme Court ("Board")
Robin Weaver	Chair of the Board
David T. Evans	Vice Chair of the Board
Thomas J. Moyer	Chief Justice of the Ohio Supreme Court
Andrew Douglas	Justice of the Ohio Supreme Court
Alice Robie Resnick	Justice of the Ohio Supreme Court
Francis E. Sweeney	Justice of the Ohio Supreme Court
Paul E. Pfeifer	Justice of the Ohio Supreme Court
Deborah L. Cook	Justice of the Ohio Supreme Court
Evelyn L. Stratton	Justice of the Ohio Supreme Court

APPELLEES (RESPONDENTS):

Ronald Suster	Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996
Patricia Cleary	Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996
Jack Durkin	Judge, Mahoning County Common Pleas Court; judicial candidate, 1996
Robert Lisotto	Judge, Mahoning County Common Pleas Court; judicial candidate, 1996
Beth Smith	Judge, Mahoning County Common Pleas Court; judicial candidate, 1996
Gail Rose Kane	former Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996
Christopher A. Boyko	Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996
Stuart Seferin	former Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996
Timothy Maloney	Judge, Mahoning County Common Pleas Court; judicial candidate, 1996

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The Decision of the United States Court of Appeals for the Sixth Circuit, entered July 30, 1998, is reported. *Ronald Suster et al. v. Jonathan W. Marshall, et al.*, 149 F.3d 523 (1998). Appendix, p. 1 ("A-1"). The six orders of the United States District Court for the Northern District of Ohio, Eastern Division from which appeals were taken in this case are unreported. *Ronald Suster et al. v. Jonathan Marshall, et al.*, 96 CV 1736, orders of September 10, 1996 (A-70), September 25, 1996 (A-66 and A-40), October 22, 1996 (A-30), November 25, 1996 (A-28) and January 27, 1997 (A-27).

JURISDICTIONAL STATEMENT

The opinion of the United States Court of Appeals for the Sixth Circuit was entered on July 30, 1998. (A-1). Jurisdiction exists under 28 U.S.C. section 1254(1).

STATUTORY AND CONSTITUTIONAL PROVISIONS INVOLVED

Former Canon 7 of the Code of Judicial Conduct of the Ohio Supreme Court:

CANON 7

JUDGES AND JUDICIAL CANDIDATES SHOULD REFRAIN FROM POLITICAL ACTIVITY INAPPROPRIATE TO JUDICIAL OFFICE

(C) Campaign Solicitations and Expenditures.

* * *

(6)(a) The total amount of expenditures made in the fund raising period allowed by division (C)(4) of this canon by the campaign committee of a judicial candidate shall not exceed the following:

* * *

(iv) Seventy-five thousand dollars in the case of a judicial candidate for a court of common pleas;

(v) Fifty thousand dollars in the case of a judicial candidate for municipal court, or county court.

Current Canon 7 of the Code of Judicial Conduct of the Ohio Supreme Court:

CANON 7

JUDGES AND JUDICIAL CANDIDATES SHOULD REFRAIN FROM POLITICAL ACTIVITY INAPPROPRIATE TO JUDICIAL OFFICE

(C) Campaign Solicitations and Expenditures.

* * *

(6)(a) Except as provided in division (C)(6)(b) of this canon, the total amount of expenditures made in the fund raising period allowed by division (C)(4) of this canon by the campaign committee of a judicial candidate shall not exceed the following:

* * *

(iv) One hundred twenty-five thousand dollars in the case of a judicial candidate for a court of common pleas, municipal

court, or county court that serves a territorial jurisdiction with a population of more than seven hundred fifty thousand;

(v) One hundred thousand dollars in the case of a judicial candidate for a court of common pleas, municipal court, or county court that serves a territorial jurisdiction with a population of more than two hundred fifty thousand but not more than seven hundred fifty thousand;

(vi) Seventy-five thousand dollars in the case of a judicial candidate for a court of common pleas, municipal court, or county court that serves a territorial jurisdiction with a population of more than one hundred thousand but not more than two hundred fifty thousand;

(vii) Fifty thousand dollars in the case of a judicial candidate for a court of common pleas, municipal court, or county court that serves a territorial jurisdiction with a population of one hundred thousand or less.

First Amendment to the United States Constitution:

Congress shall pass no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition toe Government for a redress of grievances.

Fourteenth Amendment to the United States Constitution:

Section 1. * * * No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States, nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

STATEMENT OF THE CASE

This case is about the failure of the Sixth Circuit to recognize, as a compelling state interest, a fundamental foundation of our democratic system -- the impartiality of the judicial system. In a country based upon the rule of law, there can be no more compelling state interest than the establishment and maintenance of a judiciary free from the appearance of partiality. The courts are, after all, the last resort for Americans to correct injustice caused by unfair bias in other branches of government. This is a particularly important issue to the country and the legal community at this time, as the American Bar Association prepares to consider the Report and Recommendation of its Task Force on Lawyer's Political Contributions ("ABA Report"), which includes extensive sections discussing the elected judiciary, but specifically reserves comment on limits on campaign expenditures pending the outcome of this case. ABA Report, p. 23, n. 37. The Ohio Supreme Court adopted a Code of Judicial Conduct, including Canon VII(C)(6)(a) at issue here, in order to enact a narrowly tailored means to preserve public confidence in the integrity and impartiality of the State's elected judiciary.

In 1992, the Board of Commissioners on Grievances and Discipline of the Ohio Supreme Court created a subcommittee to undertake a comprehensive review of the Ohio Code of Judicial Conduct. The next year, an Ad Hoc Committee was created by the Ohio State Bar Association to review campaign finances of the Ohio Supreme Court. Both committees recommended, among a number of suggestions, that campaign spending limits be placed on judicial candidates. Reports of both committees were submitted by Petitioner Chief Justice Moyer to a Special Committee for review. The Special Committee, in addition to reviewing the reports, authorized a public opinion poll regarding the perception of influence and partiality in the State judiciary. That poll indicated that limits on

campaign expenditures would help improve public respect for judicial elections and judges in Ohio, and help eliminate the appearance of bias in the public's eye.

After this extensive examination of the issue of public confidence in the judicial system, the Ohio Supreme Court made a number of changes to the Code of Judicial Conduct. Among other things, a limit on campaign spending was considered a remedy that would enhance impartiality in the Ohio justice system, as well as foster the appearance of judicial neutrality throughout the State. To this end, the Ohio Supreme Court promulgated, among many other reforms, Canon VII(C)(6), which limits the amount a judicial candidate can spend on his campaign for an elected judgeship in Ohio.

On August 9, 1996, Respondents Ronald Suster ("Suster") and Patricia Cleary ("Cleary"), judges on the Cuyahoga County Common Pleas Court, filed suit seeking declaratory and injunctive relief from enforcement of Canon VII(C)(6)(a). Suster was seeking election in November 1996 while Cleary's term is scheduled to end on December 31, 2000. Respondents filed suit against the Secretary and the Chair of the Board of Commissioners on Grievances and Discipline of the Ohio Supreme Court ("Board") and against all the individual Justices of the Ohio Supreme Court.

Respondents sought to have Canon VII(C)(6)(a) declared unconstitutional and to enjoin its enforcement. At the time of the original lawsuit, Canon VII(C)(6)(a) prohibited a candidate running for Ohio Common Pleas Judge from spending more than seventy five thousand dollars ($75,000) during the campaign.

Respondents contend that Canon VII(C)(6)(a) violated their free speech rights because Suster wished to spend more than the cap amount in his campaign and both Suster and Cleary

wished to hear as much speech as possible from candidates for the Cuyahoga County Common Pleas bench.

The district court denied Respondents' request for a temporary restraining order. It conducted a hearing and issued a partial preliminary injunction. The court found that there was a strong likelihood that Respondents would succeed in establishing that Canon VII(C)(6)(a) was unconstitutional, and enjoined enforcement against all judicial candidates. (A.-70) Petitioners appealed to the Sixth Circuit.

After receiving the September 10 order, Respondents filed a motion to stay the order pending an appeal to the Court of Appeals. The trial court instead modified its original order. (A-40) Under the modified injunction, the Ohio Supreme Court was prohibited from enforcing Canon VII(C)(6)(a) against Judges Suster and Cleary only. Suster and Cleary filed a Notice of Cross-Appeal.

In October and November of 1996, additional individuals filed motions to intervene as plaintiffs and for preliminary injunction. The court granted the motions to intervene and granted preliminary injunctions in favor of the intervenors. (A-30) Because of the long series of orders issued by the district court, Petitioners filed five notices of appeal to the Sixth Circuit. All of these appeals were consolidated.

Before the Sixth Circuit heard the case, and indeed before briefing was complete, the Supreme Court of Ohio amended Canon VII (C)(6). The Canon continues to place limitations on expenditures for judicial candidates but those limitations for common pleas judges are now population-based.

On appeal, the Sixth Circuit first correctly held that it could not review Canon VII(C)(6)(a) as it existed at the time the suit was filed, but must review the law as it stands now. But,

having made that acknowledgment, the court remanded the amended Canon VII(C)(6)(a) to the district court for consideration. Curiously, the Sixth Circuit then proceeded to analyze the original Canon, the one which the court itself had said was no longer subject to review.

The court below analyzed the original Canon under the "strict scrutiny" standard of review used in *Buckley v. Valeo*, 424 U.S. 1 (1976) and progeny. The Sixth Circuit disregarded Petitioner's arguments that judicial officers are different from political officers, and in performing the *Buckley* analysis incorrectly stated that the prevention of corruption is the *only* "compelling state interest" permitted when analyzing restrictions on campaign finance. Having incorrectly determined that the prevention of corruption or the appearance of corruption is the only compelling state interest possible for the analysis, the Sixth Circuit went on to hold that Cannon VII (C)(6)(a) is not narrowly tailored to serve that interest, and is therefore unconstitutional and may be enjoined.

REASONS FOR GRANTING THE WRIT

The lower courts in this case neglected a fundamental principle of the American political structure: judges are different. For all other elected offices, impartiality is unnecessary, and indeed discouraged. Voters have a right to elect representatives biased toward their viewpoints. But with judges, political issue bias is unwelcome and contrary to fundamental due process. In declining to recognize the State's compelling interest in preserving judicial impartiality and the appearance thereof, the Sixth Circuit cited decisions from this Court which considered only non-judicial elections. To allow the Sixth Circuit decision to stand is to blur historic and important distinctions between the judiciary and every other elected office in our constitutional system.

This issue is vital to the entire legal community, and particularly timely; the American Bar Association's Task Force on Lawyers' Political Contributions, in its Report and Recommendations has specifically refrained from dealing with the issue of spending limitations in judicial races pending the outcome of this particular litigation. ABA Report, p. 23, n. 37.

In addition, the court below correctly stated that it should review the law as it stood at that time, amended Canon VII (C)(6)(a). However, it then remanded the amended Canon, and proceeded to review and reject the original, unamended version of the Canon in such a way as to preclude a "full review" of the new Canon by the lower court, by making erroneous fundamental constitutional pronouncements which preclude any real analysis by the district court. Because the Sixth Circuit's failure to review the current law diverges from numerous decisions of this Court and is in conflict with holdings from other courts, it warrants prompt review.

I. THE SIXTH CIRCUIT ERRED IN REMANDING THE AMENDED CANON FOR "A FULL REVIEW," WHILE SIMULTANEOUSLY RESTRAINING SUCH A REVIEW BY ISSUING AN ERRONEOUS CONSTITUTIONAL OPINION ON THE ORIGINAL CANON.

The court below remanded the amended Canon for a "full review" by the district court, while simultaneously issuing an opinion regarding the former Canon that prevents the district court from exercising any real discretion in its analysis. The Court should take this case to establish that such actions are incompatible with well-established precedent and judicial economy. The Court should review the merits of the case under the law as it stands today, or at least vacate the Sixth

Circuit opinion, in order to allow the district court genuine discretion in its review of the amended Canon.

When a law is amended after entry of judgment in the trial court, but before the decision of the appellate court, the appellate court, in considering a facial challenge to a state law, *must* "review the judgment of the district court in light of [the] law as it now stands, not as it stood when the judgment below was entered." *Diffenderfer v. Central Baptist Church*, 404 U.S. 412, 414 (1972). If the amendment so changes the nature of the dispute as to render the appeal moot, the established practice is to vacate or reverse the judgment below and remand with a direction to dismiss. *Arizonans for Official English v. Arizona*, 520 U.S. ___, 137 L.Ed. 2d 170 (1997); *Diffenderfer*, 404 U.S. at 414; *United States v. Munsingwear*, 340 U.S. 36, 39, (1950). If the change in law requires additional factual findings or legal analysis, the case is sometimes remanded for further review. *Fusari v. Steinberg*, 419 U.S. 379, 387 (1975); *Thorpe v. Housing Authority*, 386 U.S 670 (1967); 393 U.S. 268, 272-783 (1969). But if the amendment does not make substantial changes, the appellate court will review the law as it now stands. *Florida General Contractors v. Jacksonville*, 508 U.S. 656, 661-63, n. 3. (1993), *City of Mesquite v. Aladdin's Castle*, 455 U.S. 283, 288-89 (1982). In no case has this Court simultaneously reviewed a former law and remanded the new one for review, nor has it permitted a circuit court to do so.

Here, the amended Canon has the essential feature relevant to the Sixth Circuit's holdings on the original Canon: a cap on campaign spending. Indeed, the only difference between the former Canon and the amended Canon is a population-based graduated scale in the amounts of spending allowed for candidates for the common pleas and municipal courts. The change requires no new findings of fact or legal arguments; indeed, the parties' arguments would be essentially unchanged

on remand. The Sixth Circuit correctly determined that this small change in the law did not moot the controversy.

The proper course of action for the Sixth Circuit should have been to review the Canon as it appears now. However, after correctly stating the law, the Sixth Circuit ignored it. The bizarre splitting of a facial constitutional challenge into the "old" and "new" versions of the law goes against numerous holdings of this Court, and is contrary to virtually all the circuit law on the issue.

The case most illustrative of the split in the circuits on this issue is *Rosenstiel v. Rodriguez*, 101 F.3d 1544 (8th Cir. 1996). In a situation virtually identical to this one, the Eighth Circuit was faced with a statute establishing a voluntary state campaign financing scheme. After the case was submitted to the Court of Appeals, the Minnesota legislature amended the statute, altering the operation of the waiver provision in the statute. The court correctly determined that it should review the law as it stood at the time, not as it was when the lower court reviewed it. The Eighth Circuit determined that the case had not been mooted, and reviewed the new statute, despite the fact that the amendment took place after briefing and oral argument. Here, there was an opportunity to brief the new law and address its constitutionality *during* oral argument. *See, also, Sanjour v. EPA*, 56 F.3d 85 (D.C. Cir. 1994)(new law reviewed); *Naturist Society v. Fillyaw*, 958 F.2d 1515, 1519-20 (11th Cir.1992)(case not moot, new law reviewed); *Coral Construction Co. v. King County*, 941 F. 2d 910 (9th Cir. 1991)(one issue reversed and remanded for further review, one issue reviewed under new law) .

In addition to contradicting the law in other circuits, the Sixth Circuit's decision contradicts a long line of decisions in this Court. *Arizonans for Official English; Florida General Contractors; Diffenderfer v. Central Baptist Church*, 404 U.S.

412, 414 (1972); *Goodman v. Lukens Steel*, 482 U.S. 656, 662 (1987); *Hall v. Beals*, 396 U.S. 45, 48 (1969); *Thorpe v. Housing Authority*, 393 U.S. 268, 281-282 (1969); *United States v. Alabama*, 362 U.S. 602, 604 (1960); *Hines v. Davidowtiz*, 312 U.S. 52, 60 (1941); *Carpenter v. Wabash R. Co.*, 309 U.S. 23, 26-27 (1940); *United States v. Schooner Peggy*, 1 Cranch 103, 110 (1801).

Nor is this a mere procedural problem. There are important, principled and practical reasons for the rule. In this case every meaningful legal issue regarding the analysis of the amended Canon has been determined in the Sixth Circuit's analysis of the former Canon. Unless the Sixth Circuit's judgment is an impermissible advisory opinion, *Muskrat v. United States*, 219 U.S. 346 (1911), the district court is bound by it as precedent, or at least the law of the case. The district court therefore has no meaningful discretion: it must find the amended Canon unconstitutional, without being able to address the real issues: (1) did the new Canon permissibly protect a compelling state interest in the impartiality and appearance of impartiality of the state's judiciary, and (2) is the new Canon sufficiently narrowly tailored to protect that compelling state interest?

It cannot be said that the Sixth Circuit's split of the constitutional analysis was necessary in order to protect the original plaintiffs and intervenors from potential discipline under the old Canon. The court below, consistent with precedent, could have retained and reviewed the rights of plaintiffs and intervenors by analyzing the new Canon, or could have remanded the entire case to the district court for analysis unfettered by the Sixth Circuit's conclusions.

Even worse, the litigants are unnecessarily frustrated in their desire to have the constitutionality of the Canon determined. The parties in this case are forced to litigate (and

pay for) an "analysis" by the district court that is no analysis at all. In order to have full review of the constitutionality of the Canon, the litigants must once again appeal to the Sixth Circuit, also constrained by precedent and the "law of the case" to find the amended Canon unconstitutional. Only then can the litigants reach review by this Court. Such a result is a waste of state, private and judicial resources, as well as being contrary to the case law. This approach, contrary to both law and logic, locks the Ohio judicial election process into a limbo for which no higher court review of the crucial First Amendment questions can be achieved for years. The Sixth Circuit should have reviewed the new Canon.

The Court should take this case to overrule the Sixth Circuit's actions, and review the law as it stands now. In the alternative this Court should vacate the Sixth Circuit's review of the former Canon as an advisory opinion, and allow the district court complete discretion in its analysis of the amended Canon.

II. STATES HAVE COMPELLING STATE INTERESTS IN THE IMPARTIALITY OF AND THE APPEARANCE OF IMPARTIALITY OF THEIR ELECTED JUDICIARY.

> When considering whether a campaign finance law unconstitutionally infringes freedom of speech, this Court's task is to decide whether the provision in question actually burdens the exercise of political speech and, if it does, whether it is narrowly tailored to serve a compelling state interest.

Austin v. Michigan Chamber of Commerce, 494 U.S. 652, 657 (1990)(citing *Buckley*, 424 U.S. at 25).

The "compelling state interest" put forward by the government in *Buckley* was the prevention of corruption or the appearance of corruption in the election of federal executive and legislative officers. However, this Court has never held that interest is the only one available to a government when it establishes laws that "have the effect of curtailing" the freedom of speech or association. *Buckley*, 424 U.S. at 25. *Buckley* did not consider the far different institution of the judiciary and the different interest the State has in the electoral process for judges.

A. The Decision Below Ignores the Possibility of a Compelling State Interest other than that Considered in *Buckley*.

The Court should take this case to eradicate the misconception by the Sixth Circuit that the only "compelling state interest" possible in the analysis of restrictions on campaign expenditures is the one recognized in *Buckley*. The Sixth Circuit ignored the language of the Canon itself, as well as arguments by counsel for the Ohio Supreme Court for a compelling state interest in the impartiality of the States' elected judiciary. The court below presented no reasoning at all for its holding on this issue, which is the very heart of the case.

The Code of Judicial Conduct of the Supreme Court of Ohio has as its primary purpose the integrity, independence, and impartiality of the judiciary of Ohio. All of the Canons are aimed at preserving the integrity, independence and impartiality of the judiciary. *See*, Canon I ("A Judge Shall Uphold the Integrity and Independence of the Judiciary,"); Canon II ("A Judge Shall Respect and Comply With the Law and Shall Act at all Times in a Manner That Promotes Public Confidence in the Integrity and Impartiality of the Judiciary"), Canon III ("A Judge Shall Perform the Duties of Judicial Office Impartially and

Diligently"), Canon IV ("A Judge Shall Avoid Impropriety and the Appearance of Impropriety in all of the Judge's Activities"). The provisions of Canon VII dealing with judicial elections were therefore promulgated for that purpose. The Sixth Circuit should have analyzed Canon VII (C)(6) using the purpose put forward by the Canons themselves, and not using the purpose put forward in *Buckley*.

In addition to ignoring the stated purpose of the Canons, the Sixth Circuit misstated the Court's holdings with regard to "compelling state interests" by holding that the interest put forward in *Buckley* is "*the only interest* compelling enough to infringe upon the First Amendment rights of a candidate." A-19 (citing *FEC v. NC-PAC*, 470 U.S. 480, 496-497(1985)) (emphasis added). However, this Court actually stated that:

> preventing corruption or the appearance of corruption are the only legitimate and compelling government interests *thus far identified* for restricting campaign finances.

NC-PAC, 470 U.S. at 496-497(emphasis added). Thus, this Court's cases leave open the possibility that other state interests, heretofore unidentified, may be "compelling" for purposes of restricting campaign finances. The obvious reason that the compelling state interests in the impartiality and appearance of impartiality of the judiciary are not interests "thus far identified," is that no case evaluating campaign expenditure limitations in *judicial* races has yet been heard by this Court.

B. The Preservation of the Impartiality and the Appearance of Impartiality of the State Judiciary are Compelling State Interests.

We the people expect candidates for political office to advocate strong, partisan positions, and indeed vote for those candidates who most closely reflect our own biases, viewpoints and positions. On the other hand, we expect our judges to be impartial and neutral. When judges are elected, as they are in Ohio and some other States, we expect them to display a neutral and unbiased attitude, and we vote for those candidates who most closely reflect this attitude. Such a neutral attitude goes beyond the lack of corruption. While corruption is part of the category of improper judicial bias, a judge can be biased without being corrupt. Because of the legitimate expectation that judges will be unbiased, the States have a compelling interest in the preservation of judicial impartiality and the appearance of judicial impartiality.

Of course, a candidate for any elective office, including for the judiciary, is in some sense "political." But a judicial candidate does not participate in the same robust political debate engaged in by a candidate for an executive or legislative position. The same public issues discussed in open political debate can and often do eventually come before the judiciary, and, for the judicial system to work, the parties must not feel that the judiciary is prejudiced. That is why judges and judicial candidates are not expected to engage in, and indeed are forbidden from, the "uninhibited, robust and wide open" (*New York Times v. Sullivan*, 376 U.S. 254, 270 (1964)) debate of political issues:

> Although the political elective process for the judiciary makes judicial candidates political party candidates, they are not as others. . . . They

> are, in short, to be as non-partisan as the selection of Judges by election permits.

Rosenthal v. Harwood, 35 N.Y. 2d 469, 473; 323 N.E.2d 179, 182 (1974). *See, also, Buckley v. Judicial Inquiry Board*, 997 F.2d 224, 228 (7th Cir.1993)(Posner, J.)("[j]udges remain different from legislators and executive officials, even when all are elected, in ways that bear on the strength of the state's interest in restricting their freedom of speech."); *Ackerson v. Kentucky Jud. Ret. & Removal Comm'n.*, 776 F. Supp. 309, 313 (W.D. Ky. 1991)("Because the judicial office is different in key respects from other offices, the state may regulate its judges with the differences in mind.").

Indeed, the American Bar Association itself recognizes the unique qualities of an elected judiciary. In its Report and Recommendations, the Task Force on Lawyers' Political Contributions has a lengthy discussion about the differences between judges and other elected officials. ABA Report, p. 4 & ff. The lengthy discussion begins with the statement:

> Any aspect of judicial elections begins with one over-riding fact: these elections are uniquely different from all other elections.

ABA Report, p. 4. *See, also*, Hansen, *A Run for the Bench*, ABA Journal, October 1998, p. 68-72. Although recognizing this important difference, the ABA has specifically withheld consideration of specific limitations on campaign spending pending the outcome of this case. ABA Report, p. 23, n. 37.

Pennsylvania has not been so reticent. The Supreme Court of Pennsylvania appointed a Special Commission to Limit Campaign Expenditures. In its Report ("Pa. Report"), issued this past March, the Commission recommends limits on

campaign spending for the elected judiciary, in spite of "the apparent conflict with" *Buckley*. Pa. Report, p. 19.

In Ohio, as elsewhere, judges and judicial candidates are expressly forbidden from engaging in political speech and association. Ohio's Canons III and VII (B), based on canons in the Model Code of Judicial Conduct, specifically and properly forbid judicial candidates from engaging in a wide range of associational and speech activities. The Canons indicate a deeply-held conviction by the public and the judiciary itself that candidates for judicial office should be and are held to standards quite different from those for candidates for political office.

Nor is a prohibition on certain types of political speech and activity for certain government officers unique. This Court has held that classified employees of the federal government may be prohibited from a variety of political speech and activity. *United States Civil Service Commission v. National Association of Letter Carriers, AFL-CIO*, 413 U.S. 548 (1973). Members of the Armed Forces may be prohibited from expressing religious beliefs in certain ways, *Goldman v. Weinberger*, 475 U.S. 503 (1986). Indeed, attorneys and physicians, as well as many other professionals must accept some restrictions on their First Amendment freedoms that are different from restrictions on other American citizens.

The prohibition on certain types of judicial speech is vitally necessary to preserve impartiality and the appearance of impartiality in the judiciary. If a judge or judicial candidate were allowed unrestricted speech, he or she would be free to comment on cases and issues on the current docket, or that might come before the judge in the near future. Such comments would indicate that the judge's mind is made up before the evidence is in. Rather than being an independent arbiter, the judge will have become a partisan participant in the dispute.

For these reasons, the State's interests involved in the regulation of campaign speech for political office and judicial office are distinctly different. In contrast to the governmental interest outlined in *Buckley*, the preservation of the impartiality and the appearance of impartiality of the judiciary is a broader requirement and commands a more rigorous curtailment of speech and association on the part of judges and judicial candidates.

C. The Sixth Circuit Decision Conflicts With Decisions From Numerous Courts That Have Recognized the Impartiality and the Appearance of Impartiality of the Judiciary as Vital State Interests.

Although the issue of limitations on spending in judicial elections is one of first impression, there is a clear split in the lower courts on the issue of whether there is a compelling state interest in the impartiality and the appearance of impartiality in the judiciary. The Court should take this case to resolve the split of authority on this issue, and affirm that the impartiality of the judiciary is a "compelling state interest" for purposes of First Amendment analysis.

Numerous courts from around the country have recognized an important, indeed critical, state interest in the preservation of impartiality in the judicial branch:

> Courts have repeatedly expressed the importance of an impartial judiciary: "[o]ne of the fundamental rights of a litigant under our judicial system is that he is entitled to a fair trial in a fair tribunal, and that fairness requires an absence of actual bias or prejudice in the trial of the case." *United States v. Wade*, 931 F.2d 300,

> 304 (5th Cir. 1991)(quoting *United States v. Brown*, 539 F. 2d 467, 469 (5th Cir. 1976)).

The state courts have been particularly adamant about an interest in impartiality, especially when dealing with judicial elections:

> "[An interest in the impartiality of the judiciary] extends to properly conducted judicial elections as the perception of judicial partiality and corruption which can arise from improperly run judicial campaigns whether true or not, breeds disrespect for the law and ultimately encourages extralegal self-help."*In re Hopewell*, 507 N.W.2d 911, 916 (S.D. 1993).

See, also, Rosenthal v. Harwood, 35 N.Y. 2d 469, 473; 323 N.E.2d 179, 182 (1974)(although candidates for elective office, judicial candidates have important restrictions on speech and association); *Ackerson v. Kentucky Jud. Ret. & Removal Comm'n.*, 776 F. Supp. 309, 313 (W.D. Ky. 1991)("The judicial office is different in key respects from other offices"); *Breakstone v. Mackenzie*, 561 So.2d 1164, 1168 (Fla. App. 3d District 1989)(interest in impartiality of judiciary a particularly important interest to the State).

The federal courts have also recognized the importance of an impartial judiciary, and that it can comprise a compelling state interest:

> Judges remain different from legislators and executive officials, even when all are elected, in ways that bear on the strength of the state's interest in restricting their freedom of speech." *Buckley v. Judicial Inquiry Board*, 997 F.2d 224, 228 (7th Cir.1993)(Posner, J.).

"There can be no question, . . . that a state has a compelling interest in the integrity of its judiciary." *Stretton v. Disciplinary Bd. of the Supreme Court of Pennsylvania*, 944 F.2d 137 (3d Cir. 1991)(Weis, J.). *See, also, Haffey v. Taft*, 803 F. Supp. 121, 125-26 (S.D. Ohio 1992)(Kinneary, J.)(State's asserted interest to "keep politics out of the general judicial election" considered "sincere," and sufficient to justify requirement of nonpartisan ballot); *Berger v. Supreme Court of Ohio*, 598 F. Supp. 69, 75 (S.D. Ohio 1984)(Duncan, J.) ("[T]he state has a compelling interest in assuring that its elected judges are protected from untruthful criticism and that judicial campaigns are run in a manner so as not to damage the actual and perceived integrity of state judges and the bar"); *Morial v. Judiciary Comm'n*, 565 F.2d 295, 307 (5th Cir. 1977)(Because the state has an interest "in preventing . . . judicial impropriety," a statute requiring a judge to resign before becoming a candidate for a non-judicial office is constitutional.)

Indeed, this Court has stated on more than one occasion (although in contexts other than caps on judicial spending) that a State has a compelling interest in the integrity and impartiality of its judiciary: "A State may also properly protect the judicial process from being misjudged in the minds of the public." *Cox v. Louisiana*, 379 U.S. 559, 565 (1965); "[t]here could hardly be a higher governmental interest than a State's interest in the quality of its judiciary." *Landmark Communications, Inc. v. Virginia*, 435 U.S. 829, 848 (1978)(Stewart, J., concurring).

The Sixth Circuit emphasized that the record contained no evidence that limiting expenditures in fact increases judicial impartiality. However, the court missed the point that preserving the appearance of impartiality is also a compelling state interest. Even if there is a lack of evidence that campaign spending limits increase judicial impartiality, there is evidence that such limits improve the public percention of impartiality.

In short, Canon VII(C)(6)(a) is a reasonable and narrowly tailored restriction that promotes a compelling state interest.

It is imperative for the Court to establish that governmental interests other than the one recognized in *Buckley* are available to States when legislating with regard to restrictions on campaign finance. The preservation of the impartiality and the appearance of impartiality of the judiciary is a state interest well-recognized by numerous courts. The Sixth Circuit chose to ignore this well-established interest when analyzing Canon VII (C)(6). This Court should take this case to clear the conflict and affirm that interest as one which allows appropriately-tailored limitations on speech.

III. CANON VII(C)(6)(a) IS NARROWLY TAILORED TO SERVE THE COMPELLING STATE INTERESTS OF THE PRESERVATION OF THE IMPARTIALITY AND THE PERCEPTION OF IMPARTIALITY IN THE ELECTED JUDICIARY.

Canon VII (C)(6)(a) is narrowly tailored to serve the compelling state interests of the preservation of the impartiality and the appearance of impartiality of the judiciary for a number of reasons. Canon VII(C)(6) does not limit the content of advertising a candidate wishes to engage in. It also does not limit the viewpoint of any judicial candidate. In fact, the challenged Canon does not limit the type of speech in any manner, although other Canons, not at issue here, do so.

The reasonable limit on spending is graduated according to the office sought and the population served by the office being sought. For common pleas, municipal court and county courts, the amended Canon allows a candidate to spend more in jurisdictions with larger populations.

"Unlimited expenditures tend to result in negative campaigning and circus advertising, which does nothing more than demean the position of judge." Pa. Report, p. 23 (testimony of Luzerne County, Pennsylvania, Bar President Joseph Persico). The Canon promotes impartiality and the appearance of impartiality of the judiciary by subduing the frenzy of slick advertisements on television and in other media that accompany political campaigns, while allowing candidates sufficient funds to advertise their qualifications for office. This in turn lessens the appearance that judicial candidates are politicians, and allows a more focused debate on the only appropriate issue for judicial campaigns: the legal and judicial qualifications of the candidates.

The Court should take this case to correct the grievous error by the Sixth Circuit in failing to recognize vital interests of the impartiality and the appearance of impartiality of the judiciary, and that they can justify limits on spending for judicial candidates.

IV. IF THE SIXTH CIRCUIT CORRECTLY INTERPRETED *BUCKLEY*, THEN THE STANDARD USED IN *BUCKLEY* SHOULD BE RECONSIDERED IN ITS APPLICATION TO JUDICIAL RACES.

If the Sixth Circuit is correct in its interpretation of *Buckley*, then the circumstances of this case merit the Court's reconsideration of the "strict scrutiny" standard of review used in *Buckley*, at least insofar as judicial races are concerned. Because of the different nature of judicial races, the application of only one compelling state interest, and the strict scrutiny analysis of *Buckley*, is too heavy a burden. The States are trying to maintain the appearance of judicial impartiality in an arena with exponential growth in the costs of election campaigns. In light of the special circumstances of promoting the appearance

of judicial impartiality and the skyrocketing expenditures in judicial elections, the fundamental reasoning of *Buckley* should be revisited to establish a judicial exception.[1]

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[1] If *Buckley* stands for the principle that all limits on campaign spending are unconstitutional, then this Court should revisit *Buckley* in its entirety, and overrule it. Nor is this the only case in which the Court will face challenges to the holding in *Buckley*. *See, City of Cincinnati v. Kruse*, 142 F.3d 907 (6th Cir. 1998) *cert. pending* (No. 98-454). Although the issues raised in *City of Cincinnati* do not involve the special compelling state interest of judicial impartiality, if this Court overturns the Sixth Circuit in *City of Cincinnati*, it necessarily, for that reason alone, must overturn the Sixth Circuit in this action.

CONCLUSION

For the foregoing reasons, the petitioners respectfully request the Court to grant the writ.

Respectfully submitted,

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